

Sau Maya Jagdish Dambal vs Shri. Jagdish Bhalchandra Bambal on 5 July, 2019

Author: K. K. Tated

Bench: K.K. Tated

905 mc

FARAD CONTINUATION SHEET
IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION

MISC.CIVIL APPLICATION (ST.) NO.9025 OF 2019

Office Notes, Office
Memoranda of
Coram,
Appearances,
court's orders or
directions and
Registrar's orders

Court's or Judge's orders

Mr.A.B.Tajane for the applicant

Mr.Kashyap Bhalerao for the respondent

CORAM : K. K. TATED, J DATE : JULY 5, 2019 P.C.:

. Heard.

2 After hearing for some time, both the counsel submit that matter can be disposed of by consent of both the parties. They tendered Consent Terms dated 05.07.2019 duly signed by the Respondent and his advocate as well as advocate for the Applicant. Same is taken on record and marked 'X' for identification. Same is accepted which reads thus:

905 mca9025-19.doc " CONSENT TERMS

1. The Applicant has filed Miscellaneous Civil Application ST No. 9025 of 2019 seeking Transfer of Marriage Petition No. A 264 of 2019 filed by the Respondent Husband in the Court of Learned Family Court Mumbai at Bandra to the Learned Family Court at Solapur. The parties have by consent agreed for the transfer of above marriage Petition on the following terms :

2. Marriage Petition No. A 264 of 2019 filed by the Respondent Husband in the Court of Learned Family Court Mumbai at Bandra for divorce under Section 13(1) (ia) and (ib) of Hindu Marriage Act, 1955 is transferred to the Family Court at Solapur for hearing and final disposal as per law.

3. The Learned Family Court at Solapur to decide the above Marriage Petition No. A 264 of 2019 upon transfer on or before 30.06.2020 after hearing both the parties.

4. Both the parties are granted liberty to apply for same date to the Family Court at Solapur where the above Petition is transferred and to the Court of Learned JMFC Solapur before whom the 905 mca9025-19.doc Criminal M.A. No. 387 of 2017 is pending .

5. Parties to act on the authenticated copy of this order.

6. MCA st No. 9025 of 2019 is disposed of in terms of above consent terms with no order as to cost."

3. Misc. Civil Application stands disposed of accordingly. No order as to costs.

(K.K.TATED, J.)